

Notice from the National Commission for Data Protection
regarding Bill No. 8330B on the organization
of

the Cadastre and Topography Administration and the draft
Grand-Ducal regulation concerning the consultation and dissemination
of documentation

related to official measurement, cadastral documentation, topographic documentation, the
national register of localities and streets, and the national coordinate reference systems managed by
the Cadastre and Topography Administration; and establishing the fee schedule to be collected for the
benefit of the State for office and field work carried out by the Cadastre and Topography Administration
Deliberation No. 51/AV19/2024 of August 7, 2024

1.

In accordance with Article 57.1.e of Regulation (EU) 2016/679 of April 27, 2016, on the
protection of natural persons with regard to the processing of personal data
and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection
Regulation) (hereinafter referred to as the "GDPR"), which is referenced in Article 7 of the law of
August 1, 2018, on the organization of the National Commission for Data Protection and the general
regime on data protection, the National Commission for Data Protection (hereinafter referred to as the
"National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the
national parliament, the government, and other institutions and bodies regarding legislative and
administrative measures relating to the protection of the rights and freedoms of natural persons with
regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in
the context of the preparation of a legislative proposal to be adopted by a national parliament, or a
regulatory measure based on such a legislative measure, which relates to processing."

CNPD

Notice from the National Commission for Data Protection
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1/11

Bill No. 8330 on the organization of the Cadastre and Topography Administration aims to "record the
current legislative reality," and to repeal and replace the aforementioned law of July 25, 2002. Indeed,
according to the explanatory memorandum, "[s]ince the entry into force of the law of July 25, 2002,
reorganizing the Cadastre and Topography Administration (...), the Cadastre and Topography
Administration (...) has undergone profound changes leading towards its modernization."

In its opinion of February 27, 2024, the State Council suggested splitting the aforementioned bill "into
two distinct bills, so as to provide for a first bill that addresses Article 18 amending the aforementioned
law of March 19, 1988, and a second bill that addresses Articles 1 to 17, 19, and 20 relating to the
Administration."

The Finance Committee, during its meeting on March 6, 2024, decided to follow the recommendation
of the State Council and to split the aforementioned bill into two distinct bills:

Bill 8330A amending the modified law of March 19, 1988, on land publicity in the context of
co-ownership, which only includes Article 18 of the initial Bill 8330; and

Bill 8330B on the organization of the Cadastre and Topography Administration, which includes the
remaining articles (hereinafter referred to as the "bill").

In parallel, a draft Grand-Ducal regulation concerning the consultation and dissemination of
documentation related to official measurement, cadastral documentation, topographic documentation,
the national register of localities and streets, and the national coordinate reference systems managed

by the Cadastre and Topography Administration; and establishing the fee schedule to be collected for the benefit of the State for office and field work carried out by the Cadastre and Topography Administration (hereinafter referred to as the "draft Grand-Ducal regulation"), has been developed in the context of the bill.

Finally, the bill intends to endorse the principle of "land publicity" in order to "explain the objective of the consultation and dissemination of data from the land register." Furthermore, the authors of the draft Grand-Ducal regulation specify that the purpose of the said text is "to inform the

1 Explanatory memorandum.

CNPD

Notice from the National Commission for Data Protection

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2/11

****Public of the documentation and data held by the administration and the conditions for their availability and consultation, all in compliance with the [GDPR] as well as with the Directive (EU) of the European Parliament and of the Council of June 20, 2019, concerning open data and the reuse of public sector information transposed by the law of November 29, 2021, on open data and the reuse of public sector information**.**

The CNPD, not having been directly seized to advise on these texts, nonetheless wishes to self-initiate and express its opinion on the aforementioned projects, as it is clearly evident from the above that issues pertaining to the field of personal data protection are addressed therein. Given that the draft law and the draft Grand-Ducal regulation are interconnected, the National Commission will comment on both texts together in this opinion.

****1. On the draft law****

****A. Ad article 2****

As raised in its opinion regarding draft law n°8086, the CNPD has already expressed regret that the text of draft law n°8086 does not explicitly reflect that the administration of the cadastre and topography (hereinafter the "ACT") is to be qualified as the data controller concerning the processing of personal data carried out in the context of maintaining the national register of buildings and housing.

Thus, it is necessary to reiterate its observations in which it had emphasized that "the notion of data controller plays an important role in the application of the GDPR as it determines who is responsible for the various rules regarding data protection as well as how the data subjects can exercise their rights. The National Commission deems it necessary for the authors to clarify the roles of the different stakeholders, while ensuring the use of existing notions and concepts in data protection law."

****2. V exposé des motifs.****

****3. Deliberation n°36/AV22/2023 of May 19, 2023, of the National Commission, doc. pari. n°8086/06.****

****4. Deliberation n°36/AV22/2023 of May 19, 2023, of the National Commission, doc. pari. n°8086/06, point 23, page 8.****

****CNPD****

****Opinion of the National Commission for Data Protection regarding draft law n°8330B on the organization of the Administration of the Cadastre and Topography and the draft Grand-Ducal regulation concerning the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographic documentation, the national register of localities**

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3/11

9.

The National Commission suggests completing Article 2, 8° of the draft text with the following wording: “the management of the national register of buildings and housing, in its capacity as the data controller.”

B. Regarding Article 3

10.

Article 3.2 of the draft law enshrines the principle of “land publicity.” Such provisions are new and do not appear in the amended law of July 25, 2002, concerning the reorganization of the administration of the cadastre and topography, which is intended to be repealed by the draft text. It is appropriate to commend the authors of the draft law for incorporating such a principle into the law.

11. It is evident from the explanatory memorandum that “[t]he principle of ‘land publicity’ allows the public to be informed about the legal status of a property and includes, on the one hand, information related to the land cadastre and, on the other hand, mortgage publicity. This principle is included in the present draft law to explain the objective of consulting and disseminating data from the land register.”

12.

The authors of the draft law further explain that such an objective “lies in the application of the principle of land publicity through the ‘land publicity information system.’ This system, the functionalities of which are not detailed, would be managed by the State’s Information Technology Center and would integrate ‘data provided by notaries, the Administration of Registration, Domains and VAT, and the Administration of the Cadastre and Topography.’ The CNPD is therefore unable to assess whether such a system would comply with data protection.”

13. It is also specified that the ACT would transmit to interested third parties “files related to the legal status of properties, in the form of an extract from the land register through the land publicity information system. The Grand-Ducal regulation determines the extent of the information transmitted depending on the quality of the requester” and that this transmission “is made within the limits of the information available to the administration and in compliance with the principles arising from the rules” regarding data protection. The CNPD will return below to the provisions of the draft Grand-Ducal regulation aimed at framing the principle of data communication to interested third parties.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8330B on the organization of the Administration of the Cadastre and Topography and the draft Grand-Ducal regulation concerning the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographical documentation, the national register of localities and streets, and national coordinate reference systems managed by the Administration of Cadastre and Topography; and establishing the fee schedule to be collected for the benefit of the State for office and field work carried out by the Administration of Cadastre and Topography

4/11

14. Furthermore, the National Commission aligns itself with the observations made by the Council of State, particularly regarding its developments related to the essential elements that must be included in the law. Indeed, the latter emphasized that:

“Article 31 of the Constitution, which is found in the section dedicated to public freedoms, states that: ‘[e]very person has the right to informational self-determination and to the protection of personal data concerning them. Such data may only be processed for purposes and under conditions determined by law,’ while Article 37 of the Constitution specifies, in its first sentence, that ‘[a]ny limitation on the exercise of public freedoms must be provided for by law and respect their essential content.’”

// In addition to this reminder of fundamental texts, the Constitutional Court, by refining its previous

jurisprudence, held in its ruling No. 177 of March 3, 2023, that “according to Article 32, paragraph 32, of the Constitution, in matters reserved by the Constitution for the law, the objectives of the implementing measures must be clearly stated, as well as the conditions to which they are, where applicable, subject. The orientation and framework of executive power must, in any case, be consistent, precise, and readable, with the essential provisions related thereto being required to be included in the law.”

It is necessary to determine, within the national legal order, the conditions under which personal data may be processed for a purpose other than that for which it was collected in the sense of Article 6, paragraph 4, of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC, which covers the cases in which data is communicated by an administration to third parties. This communication of personal data to third parties must be strictly regulated, in application of the right to security and confidentiality arising from the aforementioned European regulation.

In order to ensure the compliance of the provision under review with Articles 31 and 37 of the Constitution,

// it is necessary, under penalty of formal opposition, to complete this provision by specifying, in particular, the nature of the personal data communicated to third parties, the quality of the CNPD. Opinion of the National Commission for Data Protection regarding draft law No. 8330B concerning the organization of the Cadastre and Topography Administration and the Grand-Ducal regulation regarding the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographic documentation, the national register of localities and streets, and the national coordinate reference systems managed by the Cadastre and Topography Administration; and setting the fee rates to be collected for the benefit of the State for office and field work carried out by the Cadastre and Topography Administration.

5/11

"properly identified interested party," as well as the purpose and conditions under which this exchange takes place.

15. Therefore, the CNPD considers it imperative that the categories of data to be communicated be specified in Article 3 of the draft law. In this regard, it is suggested that the authors of the draft law draw inspiration from the provisions of Article L107 A of the French Tax Procedure Code, which states that "any person may obtain occasional communication, where appropriate by electronic means, of information relating to properties located in the territory of a specific municipality, or an arrondissement for the City of Paris and the municipalities of Lyon and Marseille, on which a person designated in the request holds a real estate right. Any person may obtain, under the same conditions, communication of information relating to a specific property. The communicable information includes the cadastral references, the address or, where applicable, other elements of cadastral identification of the properties, the cadastral area of the parcel, the cadastral rental value of the properties, as well as the names and addresses of the holders of rights on these properties. A decree in the Council of State, taken after consultation with the National Commission for Informatics and Liberties, defines the modalities for the application of this article and the conditions for electronic communication of the information referred to in the previous sentence."

16. It believes that the purposes of such data communication would be, according to the aforementioned article, "to inform the interested parties of the legal situation of a property." These provisions seem to implicitly target the principle of "property publicity." However, for better understanding of the text, the CNPD wonders whether it would not be appropriate to define this principle explicitly in the law.

II.

On the role of the Grand-Ducal Regulation

A. On Article 2

17. Article 2 states that "the user of the documentation is responsible for the use and any interpretation

of the documentation provided or consulted."

5 See Opinion No. 61.798 of July 12, 2024, of the Council of State, doc. parl. No. 8330B/2. CNPD

Opinion of the National Commission for Data Protection regarding draft law No. 8330B on the organization of the Cadastre and Topography Administration and the Grand-Ducal Regulation concerning the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographic documentation, the national register of localities and streets, and the national coordinate reference systems managed by the Cadastre and Topography Administration; and setting the fee rates to be collected for the benefit of the State for office and field work carried out by the Cadastre and Topography Administration.

18. The CNPD wishes to remind that Article 1.4 of the law of November 29, 2021, on open data and the reuse of public sector information, as well as Article 1.4 of Directive (EU) 2019/2024 of June 20, 2019, concerning open data and the reuse of public sector information, specify that their provisions are without prejudice to the rules relating to data protection. Recital 52 of the said directive states that "this directive does not affect the protection of natural persons with regard to the processing of personal data guaranteed by Union law and the law of the Member States, in particular Regulation (EU) 2016/679 and Directive 2002/58/EC of the European Parliament and of the Council, but also including any complementary national law provisions. This means, among other things, that the reuse of personal data is lawful only if the principle of purpose limitation set out in Article 5(1)(b) and Article 6 of Regulation (EU) 2016/679 is respected."

19. Therefore, the public availability of the data referred to in the draft texts by the ACT, under the principle of "property publicity," does not imply that the reuse of such data by third parties is automatically lawful and legitimate within the meaning of Articles 5 and 6 of the GDPR solely because these data are considered "public." Indeed, without questioning the principle of "property publicity" (even if the principle is not defined in the law), particular vigilance should be exercised regarding the legality of the processing carried out by real estate professionals for commercial prospecting purposes. Such processing would only be lawful if Articles 5 and 6 of the GDPR are respected.

B. On Article 4

20. The authors of the Grand-Ducal Regulation should be commended for specifying the recipients.

21. Article 4.2 of the draft Grand-Ducal Regulation provides that the issuance of extracts from the land register may be made "to any identified interested party within the limits of ten requests per calendar month."

22. In this regard, the authors of the draft Grand-Ducal regulation specify that these new provisions aim to limit "this request to ten parcels or ten condominium lots per request and within a limit of ten requests per civil month, as inspired by French legislation in this matter, more specifically decree no. 2012-59 of January 18, 2012, relating to the provision to the public of certain cadastral information. This limitation aims to preserve the privacy of individuals while ensuring the principle of land publicity. The identification of applicants, necessary for verifying the admissibility of requests, is done through an identity document."

23. It is appropriate to commend the introduction of such provisions that could help limit abuses regarding the communication of data.

24. Furthermore, it is particularly important to draw the attention of the authors of the draft Grand-Ducal regulation to the interpretation of Article 15.1(e) of the GDPR, which grants the data subject the right to obtain from the data controller information on the recipients or categories of recipients to whom the personal data have been disclosed, following the judgment of the Court of Justice of the European Union (hereinafter "CJEU") of January 12, 2023. In this judgment, the CJEU considered that Article 15.1(e) of the GDPR "must be interpreted as meaning that: the right of access of the data subject to personal data concerning them, provided for by this provision, implies, when such data have been or will be communicated to recipients, the obligation for the data controller to provide that person with the identity of those recipients, unless it is impossible to identify those

recipients or unless the data controller demonstrates that the access requests from the data subject are manifestly unfounded or excessive, within the meaning of Article 12(5) of Regulation 2016/679, in which case the data controller may only indicate to that person the categories of recipients concerned" (emphasis in bold).

25. However, in the absence of a strong authentication system for individuals making a request for an extract from the land register, the ACT will not be able to comply with the request of the CNPD.

CNPD

Opinion of the National Commission for Data Protection

on draft law no. 8330B concerning the organization of the Cadastre and Topography Administration and the draft Grand-Ducal regulation regarding the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographical documentation, the national register of localities and streets, and the national coordinate reference systems managed by the Cadastre and Topography Administration; and setting the fee rates to be collected for the benefit of the State for office and field work carried out by the Cadastre and Topography Administration.

8/11

****Persons concerned based on Article 15. 1.e) of the GDPR regarding individuals who have requested an extract from the land register concerning the property of the persons concerned.****

If it emerges from the commentary on the articles that "the identification of applicants, necessary for verifying the admissibility of requests, is done using an identity document," the National Commission wonders whether such a solution would be transferable to requests made electronically, as well as to requests from legal entities.

26. Thus, it is regrettable that the concrete modalities of such a mechanism are not specified in the draft text. Regarding the communication of data by the ACT electronically, the CNPD assumes that it will rely on the current procedure that allows for the communication of extracts of cadastral documentation on the geoportail.lu website via a user account. If the National Commission understands that the identification of natural persons would be done using an identity card, the modalities of such control in the context of electronic communication are not specified. Furthermore, what about the means of identification for legal entities?

In any case, the National Commission deems it essential to establish a strong authentication system for individuals initiating the request for an extract of the cadastral documentation.

27.

For all practical purposes, regarding the modalities of the communication of information provided for in Article 4.2. 1° mentioned above, the CNPD allows itself to refer to the regulatory provisions specified in Article R°107 A-6 of the French Tax Procedures Book, which intends to provide that "[t]he communication of the aforementioned information is carried out, if the applicant has chosen so, electronically to the exclusion of any other means. In this case, it takes place by electronic mail if the applicant has provided a valid email address or within the framework of a controlled access software application equipped with traceability and whose responsible party has fulfilled the preliminary formalities of Chapter IV of Law No. 78-17 of January 6, 1978, relating to data processing, files, and freedoms." It is thus suggested to the authors of the draft Grand-Ducal regulation to draw inspiration from it.

8 See above point 23.

9 See <https://extraits.aeoDOrtail.lu/?lana=fr>.

10 See comments on the articles under Ad 4.

****CNPD****

****Opinion of the National Commission for Data Protection regarding draft law No. 8330B on the organization of the Cadastre and Topography Administration and the draft Grand-Ducal regulation concerning the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographical documentation, the national register of localities and streets, and the national coordinate reference systems managed by the Cadastre and Topography Administration; and setting the fee schedule to be collected for the benefit of the State for office and field work carried out by the Cadastre and Topography Administration.****

C. Concerning Article 6

28. Article 6 aims to provide "online access rights for a part or the entirety of the land register" to the entities listed in said article. These provisions replicate the provisions of Article 9 of the Grand-Ducal Regulation of August 10, 2018, which is intended to be repealed by the text under review.

29. To the extent that direct access to the land register is provided, it should be recalled that the data controller must respect the principle of integrity and confidentiality referred to in Article 5.1.f) of the GDPR. Furthermore, Article 32 of the GDPR states that "the data controller and the processor implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk." Such measures must be implemented to avoid, in particular, unauthorized access to data, data breaches, or unwanted modifications.

30. It is important to emphasize that it is strongly recommended to define an access management policy, in order to identify from the outset the person or service within the concerned entity, and to which specific data this person or service would have access.

31. Moreover, it is necessary to provide for an access logging system. In this regard, the CNPD recommends that log data be retained for a period of five years from their recording, after which they are deleted, unless they are subject to a control procedure.

32. Furthermore, the National Commission emphasizes the importance of proactively conducting internal controls. To this end, it is necessary, in accordance with Article 32.1.d) of the GDPR, to implement a procedure "aimed at testing, analyzing, and regularly evaluating the effectiveness of the technical and organizational measures to ensure the security of processing."

33. Finally, the CNPD wonders what measures would be put in place by the ACD to ensure compliance with the provisions of Article 4.2.1° of the draft Grand-Ducal Regulation, which states that "any identified interested party" may obtain an extract from the land register "within the limit of ten requests per calendar month."

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8330B on the organization of the Cadastre and Topography Administration and the draft Grand-Ducal Regulation concerning the consultation and dissemination of documentation related to official measurement, cadastral documentation, topographical documentation, the national register of localities and streets, and national coordinate reference systems managed by the Cadastre and Topography Administration; and establishing the fee schedule to be collected for the benefit of the State for office and field work carried out by the Cadastre and Topography Administration.

10/11

Indeed, in the event that employees of the same company individually obtain the issuance of extracts from the land register, would this case not constitute a circumvention of the quotas set by the aforementioned article?

Thus adopted in Belvaux on August 7, 2024.

The National Commission for Data Protection

Thierry Lallemand

Commissioner

Commissioner

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Opinion of the National Commission for Data Protection

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